

Mohd Shuaib v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 12 October 2023 · 2023:AHC:197149-DB · WRIT - C No. 35371 of 2023 · **Writ disposed; Executive Engineer to decide connection application in three months**

HEADNOTE

The writ, which sought only a time-bound decision on an application for a new electricity connection, was disposed of. If the petitioner has applied under the U.P. Electricity Supply Code, 2005, the Executive Engineer, Purvanchal Vidyut Vitran Nigam Limited, shall decide that application and pass an appropriate order within three months of production of a certified copy of this order.

FACTUAL SUMMARY

Mohd Shuaib filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and three others, including the Executive Engineer of Purvanchal Vidyut Vitran Nigam Limited. He asked for a mandamus that the authorities consider and decide, within a specified time, his application dated 9 June 2023 for a new electricity connection. The Court heard counsel for the petitioner, counsel holding brief for respondent nos. 2 and 3, and the learned Standing Counsel for the State.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

new electricity connection application

HOLDING

A writ asking only that an application for a new electricity connection be considered need not remain pending. If the petitioner has filed such an application under the U.P. Electricity Supply Code, 2005, the Executive Engineer shall decide it and pass an appropriate order within three months from the date a certified copy of the order is produced before him. ¶ 3-4

FLAG The order invokes the U.P. Electricity Supply Code, 2005 for a new-connection application but cites no clause number.

PRINCIPLE TAGS

direction-to-decide-new-connection-application Where the writ seeks only consideration of a new-connection application under the Supply Code, the Court disposes of the petition by directing the Executive Engineer to pass an appropriate order within three months, without granting or refusing the connection. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO A NEW ELECTRICITY CONNECTION

Left to the Executive Engineer to pass an appropriate order if an application under the Supply Code has been filed. ¶ 4

NOT DECIDED — WHETHER AN APPLICATION DATED 09.06.2023 WAS IN FACT FILED UNDER THE U.P. ELECTRICITY SUPPLY CODE, 2005

The direction is conditional on such an application having been filed. ¶ 4